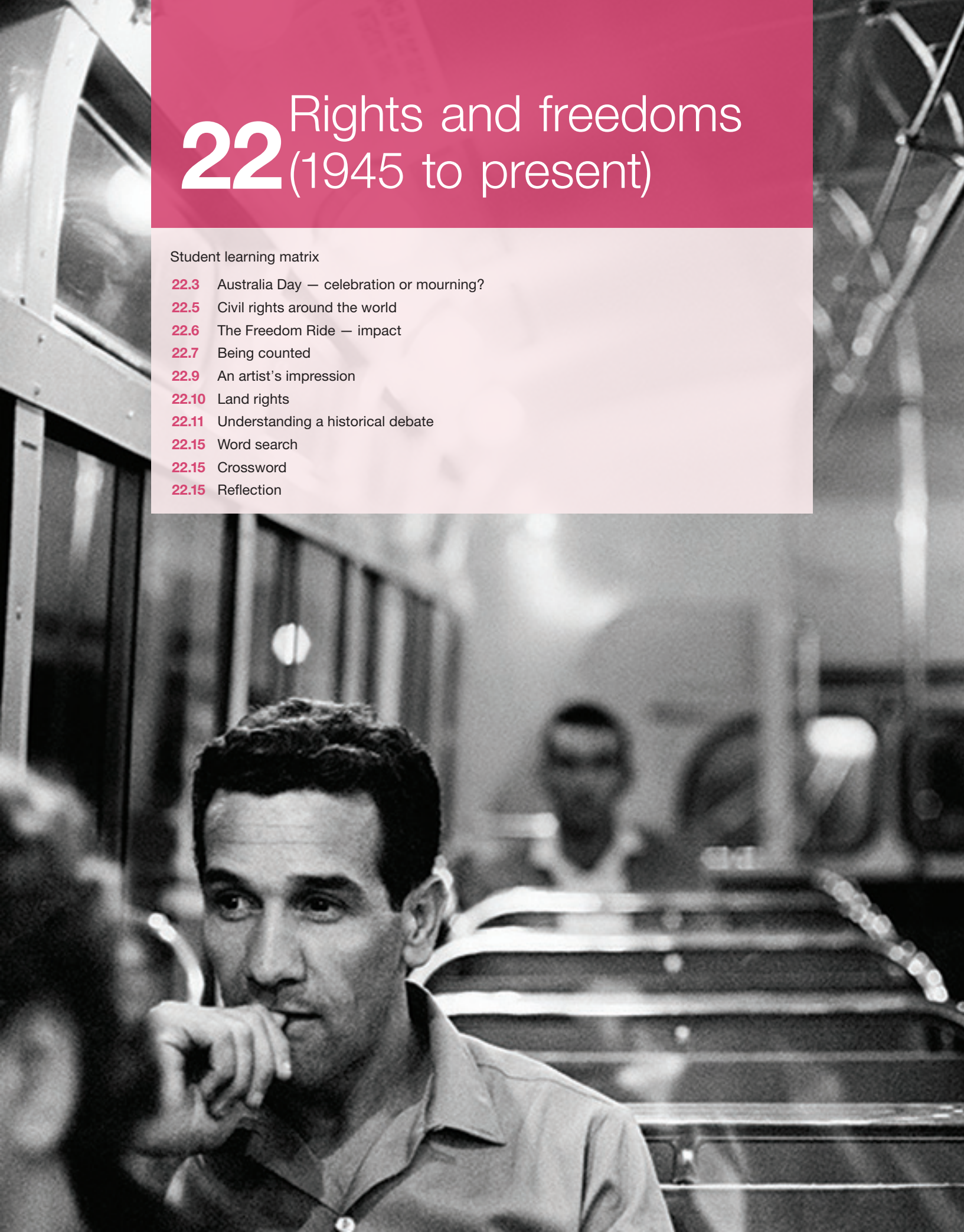


22 Rights and freedoms (1945 to present)

Student learning matrix

- 22.3** Australia Day — celebration or mourning?
- 22.5** Civil rights around the world
- 22.6** The Freedom Ride — impact
- 22.7** Being counted
- 22.9** An artist's impression
- 22.10** Land rights
- 22.11** Understanding a historical debate
- 22.15** Word search
- 22.15** Crossword
- 22.15** Reflection



Australia Day — celebration or mourning?

Student: Class: Due date:

The First Fleet arrived at Port Jackson on 26 January 1788. That day was — and is still — remembered in many ways and called many things.

1. What message does each of the following names give, and from whose point of view (POV) do you think the name originates?

Name	Message	POV (I – Indigenous E – European)
Anniversary Day	A day worth remembering and celebrating every year, such as the arrival of Europeans to Australia	E
Foundation Day	A day to remember or celebrate the beginning of European settlement	E
ANA* Day	A day to celebrate the new society established in Australia for children of convicts and the first European settlers	E
Invasion Day	The day Europeans illegally claimed Aboriginal land for themselves	I
Survival Day	A day to remember that, despite massacres, imprisonment and introduced diseases, the Aboriginal people have survived	I
Australia Day (official name from 1935)	A day of remembrance and celebration for all Australians	E

*ANA = Australian Natives Association (*natives* refers to the first generation of Europeans born in Australia)

2. Briefly describe the Day of Mourning protest.

In Sydney, during celebrations of the 150th anniversary of European settlement in Australia, Aboriginal and Torres Strait Islander activists led a small group in a civil rights protest. The group developed a 10-point plan for equality.

3. Study Sources 3, 4 and 5 seen below, from the section *The beginnings of an Aboriginal protest*. What is your impression of Aboriginal and Torres Strait Islander people based on these sources? Consider their appearance, actions and words.

The people look well dressed, neat and calm. They are literate, as is shown by their signs, discussion and desire to establish a newspaper. All ages and genders are represented, suggesting the protest reflects common beliefs and feelings of the Aboriginal and Torres Strait Islander community. Their demeanour shows they are fundamentally respectful of society's standards, but the fact that they are gathering when it is illegal to do so shows they are courageous and determined to be heard.

SOURCE 3 The Day of Mourning was the first organised civil rights protest by Aboriginal and Torres Strait Islander peoples. Two of the day's organisers, William Ferguson and Jack Patten, are pictured at far left and right respectively.



SOURCE 4 APA President Jack Patten (right) reads the resolution.



Source: Mitchell Library, State Library of NSW. Call no. MLQ 059/9.

SOURCE 5 Following the Day of Mourning, Australia's Indigenous community began publishing its first newspaper, *Abo Call*, edited by Jack Patten.

To all Aborigines!

'The Abo Call' is our own paper.

It has been established to present the case for Aborigines, from the point of view of the Aborigines themselves.

This paper has nothing to do with missionaries, or anthropologists, or with anybody who looks down on Aborigines as an 'inferior' race.

We are NOT an inferior race, we have merely been refused the chance of education that whites receive. 'The Abo Call' will show that we do not want to go back to the Stone Age.

Representing 60 000 Full Bloods and 20 000 Halfcastes in Australia, we raise our voice to ask for Education, Equal Opportunity, and Full Citizen Rights.

'The Abo Call' will be published once a month. Price 3d [3 pence].

The Editor asks all Aborigines and Halfcastes to support the paper, by buying it and also by acting as agents for sale to white friends and supporters.

HISTORY

Civil rights around the world

Student: Class: Due date:

1. The civil rights movement developed in stages. From the following text box, select the most appropriate combination of terms for the stage reached in each decade.

Consolidating Awareness	Emerging Expansion	Growing Leadership	Initial Movement	Limited Understanding	Universal
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1940s: **Initial awareness**1950s: **Emerging leadership**1960s: **Universal movement**

2. What did each of the following figures contribute to the civil rights movement?

1948 Herbert Vere Evatt: **As president of the UN General Assembly, Dr Evatt, a former Australian judge and government minister, helped draft the *Universal Declaration of Human Rights* (UDHR).**

1948 Eleanor Roosevelt: **As an activist and delegate to the UN General Assembly, Mrs Roosevelt, First Lady of the US, helped develop the UDHR.**

1955 Rosa Parks: **Rosa Parks was an African American who sparked the Montgomery bus boycott in Alabama when she refused to surrender her bus seat to a white man.**

1957 Minnijean Brown Trickey: **As one of the Little Rock Nine who bravely attended her recently desegregated local school, Trickey inspired her generation to stand up for their civil rights.**

1963 Martin Luther King Jr: **As an African-American civil rights campaigner, Dr King marched on Washington and presented his famous 'I have a dream' speech.**

1967 Stokely Carmichael: **As an African-American activist, Carmichael defined 'overt' and 'covert' racism, and inspired groups such as the Black Panther Party to take direct action.**

HISTORY**3. How did some Australian protesters contribute to the international civil rights movement in 1971?**

Some Australians tried to disrupt games during the tour of the South African rugby team to protest the practice of apartheid in South Africa.

4 Refer to the ‘Did you know?’ feature below, from this topic. Why do you think racism developed from colonial times in the US, South Africa and Australia?

European settlers assumed that because indigenous peoples had less developed technology, housing and means of provision, they must be inferior species.

DID YOU KNOW?

Racism is based on the belief that a person’s race determines their ability and attributes, and that some people are inherently inferior to others. In the 1930s Hitler invoked racist theories to justify his persecution of the Jewish people. The same theories were used to justify racial segregation in the United States, South Africa and Australia.

HISTORY

The Freedom Ride — impact

Student: Class: Due date:

1. Complete the following cause-and-effect table to show the impact of activist Charles Perkins and the impact of the Freedom Ride.

A. Charles Perkins — civil rights activist	
Cause	Effect
Perkins has a potentially disadvantaged childhood in Alice Springs.	He is sent to an Anglican Boys' Hostel in Adelaide to become assimilated into white society.
Perkins shows soccer talent.	'Doors opened' for Perkins, including the chance to attend university; in 1965, he was the first Indigenous Australian to graduate.
Perkins is inspired by civil rights action in the US.	Perkins organised the Freedom Ride in 1965 to educate fellow white students about race relations in Australia.
B. Freedom Ride — civil rights action	
Cause	Effect
Thirty white university students spend two weeks on a study tour of outback NSW.	The students became aware of entrenched racial discrimination and poverty among Aboriginal Australians.
The students are jeered at, spat upon, punched and rammed.	The white students experienced prejudice first hand.
The ride attracts national and international media attention.	Awareness was raised about the depth and breadth of inequality and racism; Australians were forced to confront the issue.
Some Freedom Riders feel challenged to continue civil rights action.	Perkins and Spiegelman dedicated their lives to social justice through public service; both received national awards in recognition of their work.

HISTORY

2. The following terms each have related but distinct meanings. First consider the distinctions, then refer to a dictionary and write down the accurate definitions.

Racism: **the belief that one race is intrinsically superior to another**

.....

Prejudice: **the prejudgement of a person based on limited knowledge**

.....

Discrimination: **the perception of difference between one person and another, sometimes resulting in**

unfair treatment of a person or persons

.....

HISTORY

Being counted

Student: Class: Due date:

1. Compulsory enrolment by non-Aboriginal and Torres Strait Islander Australians for federal elections was introduced in 1912.

- a. How did the parliamentary panel's recommendation for Aboriginal and Torres Strait Islander people differ in 1961?**

Enrolment was optional for Aboriginal and Torres Strait Islander people, not compulsory.

- b. Why do you think enrolment was optional for Aboriginal and Torres Strait Islander people? Source 1 below may suggest some reasons.**

Some Aboriginal and Torres Strait Islander people, especially from remote communities, may have felt daunted. They would have had to find out about candidates as well understand the electoral process; many would have been illiterate. Perhaps the government felt it was unfair to force them to be involved in something so unfamiliar.

SOURCE 1 Aboriginal people exercise their democratic right to vote at a polling booth in Bagot Settlement, Northern Territory, in 1962. Prior to this, all Territory Aborigines had been deemed wards of the state and therefore denied the right to vote.



HISTORY

2. The Source 3 table below summarises the rights of Aboriginal and Torres Strait Islander people prior to the 1967 referendum.

- a. Why did rights differ from state to state?

Before the 1967 referendum, each state and territory had jurisdiction over its own Aboriginal and Torres Strait Islander population, so there was inconsistency from state to state.

- b. Prior to 1967, what rights were awarded to Aboriginal and Torres Strait Islander people in Western Australia, Queensland and the Northern Territory?

None of the listed rights were awarded, except voting rights in the Northern Territory.

- c. Why do you think these states and territory were so far behind the other states at that time?

They are large geographical areas with a high proportion of Australia's Indigenous population, many of whom would have been living in remote areas, perceived to be problematic. This would mean the non-Indigenous population would have been more likely to be racist, to feel prejudice towards or to discriminate against the Indigenous population.

- d. How did the referendum address this inconsistency between states and territories?

The second part of the referendum proposed that Aboriginal and Torres Strait Islander peoples come under Commonwealth, not state, jurisdiction.

SOURCE 3 This table was featured in an informative pamphlet provided to voters by the Federal Council for the Advancement of Aborigines (FCAA) prior to the referendum. It summarises the rights that Aboriginal and Torres Strait Islander peoples had in different states at the time.

Right	NSW	VIC	SA	WA	NT	QLD
Voting rights (state)	Yes	Yes	Yes	No	Yes	No
Marry freely	Yes	Yes	Yes	No	No	No
Control own children	Yes	Yes	No	No	No	No
Move freely	Yes	No	No	No	No	No
Own property freely	Yes	No	Yes	No	No	No
Receive award wages	Yes	No	No	No	No	No
Alcohol allowed	No	No	No	No	No	No

3. Listed below are the various government policies towards Aboriginal and Torres Strait Islander people; each one fell short of its goals. Define each of the following terms. (Refer to the beginning of subtopic *The Stolen Generations*.)

Protection: The policy of 'protecting' Aboriginal peoples by sending them to live in self-sufficient communities away from European contact and influence.

Assimilation: The policy of enabling Aboriginal peoples to become like Europeans by removing children from Indigenous communities and raising them in institutions and foster homes.

HISTORY

Integration:

The policy that granted equal rights to Aboriginal and Torres Strait Islander peoples so that, before the law, all Australians were equal.

HISTORY

Land rights

Student: Class: Due date:

Look at the images below. Add a date and a brief statement summarising each of these significant steps from *terra nullius* to Native Title.



swim ink 2 ltc / Getty Images Australia

1. In 1770, Captain Cook claimed the east coast for Britain, declaring it *terra nullius*.



2. In 1788, British law replaced Aboriginal law.

© AAP Image/National Gallery of Australia/PR Image



Bark petition

3. In 1963, the land rights movement began with the Yolngu people challenging a mining company's right to mine their land.



© National Archives of Australia/F1, 1968/27350

4. In 1966, the Gurindji people at Wave Hill cattle station went on strike to protest about poor living and working conditions.



Patrick Horton / Getty Images Australia

5. In 1972, a tent embassy was set up at Parliament House to protest the court's and government's decision not to recognise land rights.



News Ltd / NewsPix

6. In 1975, the government returned 300 000 square kilometres to the Gurindji people.



Mer Island

7. In 1982, Meriam Islanders, led by Eddie Mabo, won a High Court challenge for native title of their home island.



8. In 1993, the Native Title Act was passed, providing a legal means of dealing with land rights claims.

HISTORY

Understanding a historical debate

Student: Class: Due date:

In our Australian democratic parliament, the government and the Opposition engage in debate so that each side can argue its case and provide supporting evidence. The media reports these debates and, in various ways, provides opportunities for the wider community to contribute to a debate. These debates contribute to our historical record.

Step 1: Re-read Kevin Rudd's 'sorry speech' in the subtopic *Reconciliation*.

Step 2: Read the following two extracts. The first is an extensive extract of the opposition's follow-up speech, and the latter is an extract from Daniel Reynaud's 'Saying sorry'.

Step 3: Answer the questions on the following page.

In some cases, government policies evolved from the belief that the Aboriginal race would not survive and should be assimilated. In others, the conviction was that half-caste children in particular should, for their own protection, be removed to government and church-run institutions where conditions reflected the standards of the day. Others were placed with white families whose kindness motivated them to the belief that rescued children deserved a better life.

Our responsibility, every one of us, is to understand what happened here, why it happened, the impact it had not only on those who were removed, but also those who did the removing and supported it.

Our generation does not own these actions, nor should it feel guilt for what was done in many, but not all cases, with the best of intentions. But in saying we are sorry — and deeply so — we remind ourselves that each generation lives in ignorance of the long-term consequences of its decisions and actions. Even when motivated by inherent humanity and decency to reach out to the dispossessed in extreme adversity, our actions can have unintended outcomes. As such, many decent Australians are hurt by accusations of theft in relation to their good intentions.

Source: Extracts from Opposition leader Brendan Nelson's speech, addressing the 42nd Parliament of Australia on 13 February 2008.

Those opposed to an apology forwarded various arguments, including that the intervention was well intentioned, provided better circumstances and opportunities for Indigenous children, and that today's Australians carry no moral responsibility for actions of previous generations. There were also fears that an apology would fuel compensation claims.

And of course, every side in the argument was able to trot out case studies — real lives — that supported their point of view. Evidence was produced of some Aboriginal parents voluntarily surrendering children, and others having their children brutally and forcibly removed.

Some victims spoke with affection of their treatment in welfare or foster homes; others of clinical, harsh institutions and confusion over their loss of identity. Many testimonies told of simultaneously positive and negative experiences: of feeling fortunate to have received a good education in materially comfortable circumstances, while at the same time suffering considerable emotional trauma through enforced isolation from their heritage.

The range of experiences of the so-called stolen generations and the range of attitudes toward them raises questions about saying sorry. What exactly are we saying sorry for? Who is sorry?

Are we responsible for the actions of past generations? Does being sorry involve more than just the words?

Source: Extract from 'Saying sorry' by Daniel Reynaud, *Signs of the Times*, May 2008.

HISTORY**1. What is the *main* reason for Rudd's 'sorry speech'?**

Rudd's main reason for saying sorry is that it is the current generation's responsibility to deal appropriately with past hurts so that the nation can move forward together.

2. What is the central idea of Nelson's 'sorry speech'?

Nelson's central idea is that the current generation needs to understand past hurts and be sorry that they happened, but not 'own' past actions nor feel guilty.

3. What is the main question raised by Reynaud?

Reynaud cuts to the heart of the debate by asking what are the implications of saying sorry, which depend, of course, on who is saying sorry and for what.

4. What sort of evidence does each of the following speakers/writers offer?

Rudd: Rudd provides a list of past government actions that are historically verifiable. This list supports his belief that official policies inflicted much grief and suffering on the Stolen Generations and their families.

Nelson: Nelson does not deny such grief and suffering, nor that it was caused by official policy. However, he does introduce some comments on the motivation behind such policies and suggests that some people, both public and private, had honourable intentions, while not being able to foresee the long-term detrimental consequences.

Reynaud: Reynaud acknowledges evidence from both sides of the debate, that there are stories of both gladness and woe. Some people removed from their families had positive experiences and were grateful, others had negative experiences. Hence his question: 'What exactly are we saying sorry for?'

HISTORY**5. What is the significance of the date of publication of Reynaud's comments?**

Rudd's 'sorry speech' was given in February. That Reynaud's comments were made in May suggests the speech did not end the debate on whether we should say sorry and, if so, for what should we say sorry.

6. Which source do you find most appealing and the most convincing? Why?

Students should nominate Rudd, Nelson or Reynaud. They could comment on the content of the speech or article, but also on the use of language to evoke rational or emotional responses. For example, Rudd's tone is serious, respectful and humble. He uses strong language to describe past 'sins' ('indignity and degradation'), but uses inclusive and encouraging language when he speaks of the future ('we harness', 'we embrace').

7. Whether you agree or disagree with Nelson's comments, why is it important to involve the Opposition in public debate on important issues?

Such public debate allows for a range of ideas and opinions to be put forward on any issue. Our members of parliament are supposed to represent the opinions of the whole community, so it would be concerning if all MPs agreed with each other, or if the Opposition consistently agreed with the government.

HISTORY

2. Compare the tent and the parliament buildings.

The tent is obviously much smaller, flimsier and more temporary compared with the solid parliament buildings. Each building is flying a flag: the Australian flag on Parliament House and the Aboriginal and Torres Strait Islander flags on the tent. This emphasises how firmly western society has taken over this land. Yet the artist has given visual prominence to the tent and its flags.

3. Are any of the above-mentioned features or figures evidence that the artist sympathises with the Aboriginal protestors? Explain.

The tent is obviously much smaller, flimsier and more temporary compared with the solid parliament buildings. Each building is flying a flag: the Australian flag on Parliament House and the Aboriginal and Torres Strait Islander flags on the tent. This emphasises how firmly western society has taken over this land. Yet the artist has given visual prominence to the tent and its flags.

SOURCE 3 An artist's impression of the Aboriginal Tent Embassy, 1972

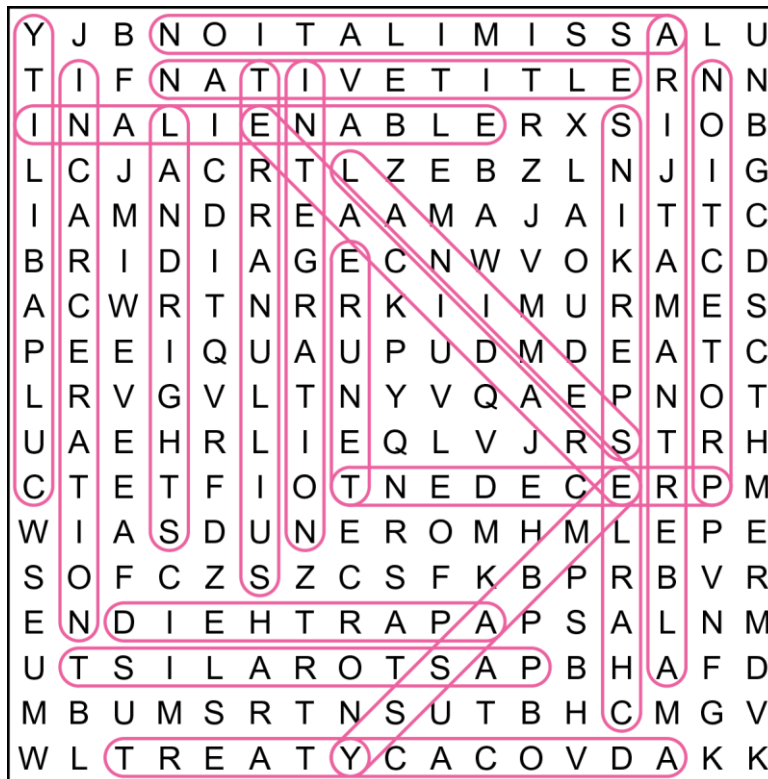


HISTORY

Word search

Student: Class: Due date:

Complete the following word search.



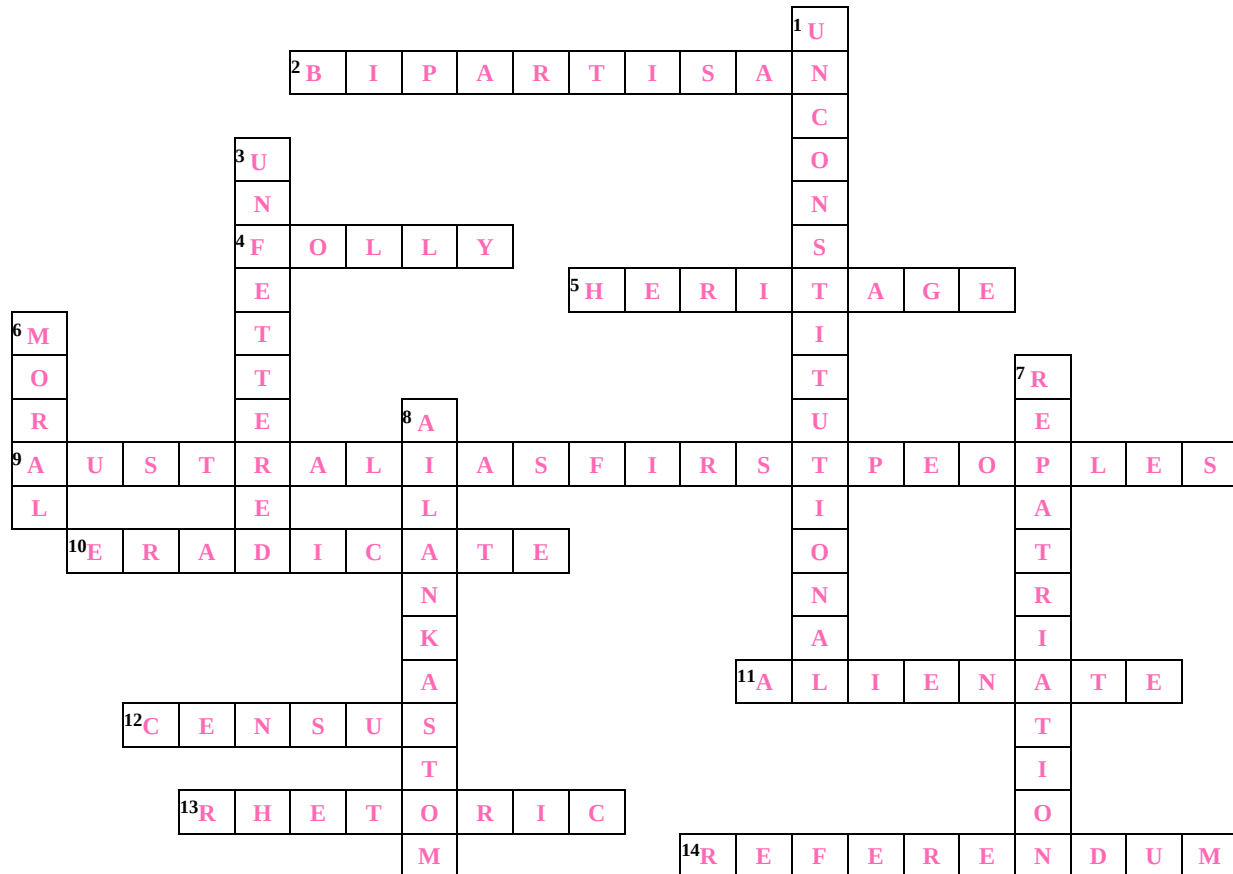
- 1 active support, often by one party on behalf of another **ADVOCACY**
- 2 a well-known Indigenous artist **ALBERT NAMATJIRA**
- 3 an official policy of political, legal, economic and social segregation **APARTHEID**
- 4 a policy whereby the Indigenous minority was encouraged to become like the non-Indigenous majority **ASSIMILATION**
- 5 an Aboriginal civil rights activist **CHARLES PERKINS**
- 6 having responsibility, blameworthiness **CULPABILITY**
- 7 the residence or place of business in one country of an ambassador from another country **EMBASSY**
- 8 to be rid of **ERADICATE**
- 9 belonging to a thing or person naturally and intrinsically **INALIENABLE**
- 10 imprisonment **INCARCERATION**
- 11 a policy whereby Indigenous Australians were encouraged to join with non-Indigenous Australians to become one nation **INTEGRATION**
- 12 the rights of Indigenous peoples to own land they originally occupied **LAND RIGHTS**
- 13 the name of an Act of Parliament giving Indigenous inhabitants certain rights over their traditional lands **NATIVE TITLE**
- 14 a farmer of pasture. i.e. someone who runs a sheep or cattle station **PASTORALIST**
- 15 an action or decision on which future actions and decisions may be based **PRECEDENT**
- 16 a policy whereby the Indigenous minority were separated from the non-Indigenous majority for their own safety and well-being **PROTECTION**
- 17 original and influential **TENURE**
- 18 the holding of land or property **SEMINAL**
- 19 the Latin word for 'land belonging to no-one' **TERRA NULLIUS**
- 20 a formal agreement between states **TREATY**

HISTORY

Crossword

Student: Class: Due date:

Complete the crossword below.



ACROSS

- 2 supported by the two major political parties (10)
- 4 foolishness; lack of good sense (5)
- 5 cultural traditions (8)
- 9 an inclusive term used to refer to groups that make up the Aboriginal and Torres Strait Islander community (10,5,7)
- 10 wipe out, obliterate (9)
- 11 to cause someone to feel isolated or separated (8)
- 12 an official, usually periodic count of a population (6)
- 13 effective and persuasive language, sometimes used to mislead (8)
- 14 a ballot in which people decide on an important political issue (10)

DOWN

- 1 not in accord with the principles set forth in the Constitution (16)
- 3 unrestricted (10)
- 6 relating to right and wrong behaviour (5)
- 7 assistance given to ex-service men and women returning to a civilian way of life (12)
- 8 the body of customs, traditions, observances and beliefs of some or all of the Torres Strait Islanders living in the Torres Strait area (5,6)